



Appeal Decision

Site visit made on 11 August 2026

by Richard Snow BA(Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 10 September 2026

Appeal Ref: 6010557

15 Sextant Road, Leicester LE5 2JB

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by Mr Dhami against the decision of Leicester City Council.
 - The application ref is 20251368.
 - The development proposed is 1 dwelling with associated landscaping, parking and fencing.
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Decision

1. The appeal is dismissed.

Application for costs

2. An application for costs was made by Mr Dhami against Leicester City Council. This application is the subject of a separate decision.

Preliminary Matters

3. The description of development differs between the application form and the decision notice. As I have no evidence that the appellant agreed to the amended wording, I have used the description set out in the application form.
4. The council adopted the Leicester Local Plan (2020-2036) (the LP) on 9 June 2026. The LP replaced the Leicester City Core Strategy (2014) and the saved policies of the Leicester Local Plan (2006) referred to in evidence. Both parties have had the opportunity to comment on the policies of the LP and their relevance to this appeal.
5. On 17 August 2026 a new National Planning Policy Framework ('the Framework') was issued replacing the version of the Framework published in December 2024. The parties were invited to comment and the response received has been taken into account in the determination of the appeal.

Main Issues

6. The main issues for this appeal are:
 - Whether future occupiers would be provided with adequate living conditions with particular regard to outlook, natural light and external private amenity space; and,
 - The effect of the proposal on the character and appearance of the area.

Reasons

Living conditions

7. The proposal dwelling is a modest 1-bed bungalow. It is common ground that the internal floorspace accords with the Nationally Described Space Standards.
8. The proposed bedroom includes a front-facing window, recessed within a covered area behind the front elevation of the dwelling designed to accommodate a parking space. It is likely that for the majority of the time that the room was occupied, a vehicle would be parked in front of this window, significantly reducing outlook and natural light for occupants. These effects would be compounded by the recessed nature of the window behind the walls and beneath the roof of the bungalow and would not be adequately compensated by the proposed pair of narrow, side facing obscure glazed windows, due to their close proximity to the proposed 2m high boundary fencing.
9. The proposed living room window would front the retained hedgerow across the site frontage, at close proximity. The hedgerow falls outside of the ownership and therefore control of the appellant, and its maintenance to any given height could not therefore be assured. At the time of my site visit, the hedge was of a height significantly above that which would allow any views of the street from the living room window. This relationship would also limit natural light entering the living room. The limitations in outlook from, and natural light to, the living room window would fail to provide acceptable living conditions for occupiers.
10. Rooms to the rear of the proposed dwelling would be provided with windows fitted with obscure glazing. Whilst unproblematic for the bathroom, this glazing would prevent outlook from the main window of the kitchen, likely to be a well-used habitable room, and would consequently fail to provide acceptable living conditions. The glazing shown in the door within the side wall of the kitchen would not mitigate this lack of outlook due to its own close proximity to the proposed 2m high side boundary fence.
11. The appellant is concerned that the council did not commission a Daylight/Sunlight Assessment in assessing the proposal. Given the scale and nature of the proposal and the site characteristics, I am not persuaded of the need for such an assessment and find that overall, none of the main habitable rooms of the proposed dwelling would be provided with acceptable outlook, and that natural light to the front, south-facing windows would be unacceptably impeded as a consequence of the design and layout of the proposal described above.
12. The external site frontage would accommodate access to the front door, a parking space and a bin store. In practice, therefore, useable outdoor amenity space for future occupiers would be limited to the rear garden.
13. Due to the short separation distance between the host dwelling and the proposed bungalow, the proposed rear garden would be of shallow depth. Ground levels within the appeal site would be lowered and a boundary wall constructed to retain the higher ground of no 15's rear garden. In combination, this retaining wall and the proposed 2m high boundary fence atop it, would result in a solid boundary structure of considerable height across the rear boundary of the appeal site relative to proposed ground levels. Given the shallow depth of the proposed

garden, its enclosure by this dominant boundary screening would create an oppressive environment for occupiers.

14. Whilst the evidence of both parties refers to the council's Residential Amenity Supplementary Planning Document (SPD) (2008), the SPD was not saved as part of the adoption of the LP. Accordingly, its guidance on garden sizes is no longer extant. Notwithstanding this, I find that the shallow depth of the rear garden and its proposed enclosure mean that the proposal would fail to provide acceptable external amenity space for occupiers.
15. Taking all of the above into account, the proposal would not provide acceptable living conditions for future occupiers due, in combination, to the poor outlook and natural light available internally, and the cramped nature of the external amenity space enclosed by oppressive and overbearing boundary treatment. Accordingly, the proposal conflicts with Policies DQP05 and DQP06 of the LP which collectively seek to ensure occupiers of new development are provided with appropriate living conditions, including in relation to light and outlook.

Character and appearance

16. The proposed dwelling would be sited within the rear garden of 15 Sextant Road and would address Thurncourt Road. The Thurncourt Road street scene is primarily formed of single storey properties although two storey houses are evident further to the south-east. To the immediate east of the appeal site, a terrace of 3 bungalows fronts the street. To the west, the rear elevations and roofs of nos 9 and 11 Sextant Road are visible above the roadside hedging. Opposite the site is a small crescent of bungalows formed around a central cul de sac in an arrangement repeated along the south-western side of the road.
17. The proposal would introduce a single storey property in general alignment with the existing bungalows alongside. It would feature a centrally projecting pitched-roofed porch, flanked by main ground floor windows. Each external elevation of the property would include vertical trellis green walls. The front-facing roof plane is shown to accommodate solar panels. The site frontage would be hard surfaced.
18. The proposed dwelling would display many of the design characteristics of nearby properties and would be of similar scale. In following the alignment of the adjacent bungalows, it would appropriately address the street and whilst closer to the road than those properties, the alignment of dwellings along the street varies and the proposed bungalow would not appear incongruous or unduly dominant in the street scene as a result.
19. The council considers that the size and massing of the proposal would be out of character with its surroundings. However, the proportions and height of the proposal would be generally reflective of other bungalows along the street scene and its width and proximity to site boundaries would be similar. The inclusion of design features differing from those of the terrace of 3 bungalows adjacent would add interest to the elevation and the failure to mimic the appearance of those properties would not cause unacceptable harm to the street scene. The council raises concern that the hard-surfaced nature of the frontage would render the property more prominent. I noted on my site visit that several properties in the vicinity of the appeal site similarly present hard surfaced frontages to the street. I am not persuaded that the treatment of the proposed frontage would therefore cause unacceptable harm to the character of the area.

20. The retention of the boundary hedge across the frontage of the site cannot be assured for the reasons already addressed. However, given that the proposal would assimilate acceptably within the street scene, even if the hedge were removed, the proposal would not cause detriment to the character of the appeal site or its surroundings.
21. For the above reasons, the proposed dwelling would be generally reflective of the positioning, size, design and massing of existing properties in the vicinity and would accordingly appropriately reflect the character and appearance of the area. In this regard, it would meet the requirements of Policies DQP01 and DQP05 of the LP which, amongst other things, require new development to be appropriate in the context and character of its surroundings.

Planning Balance and Conclusion

22. I have found that the proposal conflicts with Policies DQP05 and DQP06 of the LP. These policies are consistent with the Framework in so far as it seeks well-designed places which provide appropriate living conditions for future occupiers. Therefore, the conflict with these policies should be given significant weight in this appeal.
23. Policy S3 of the Framework applies a presumption in favour of sustainable development. For development within settlements, including new housing, this means that Policy S4 of the Framework should be applied. Policy S4 sets out that development proposals should be approved unless the benefits of doing so would be substantially outweighed by any adverse effects when assessed against the national decision-making policies in the Framework.
24. Policy L2 of the Framework advises that substantial weight should be given to the benefits where a development proposal would create additional homes within settlements, including additional units within residential curtilages. However, this support is contingent on development providing acceptable living standards for residents in terms of access to daylight, sunlight and external amenity space. For the reasons above, the proposal would fail to achieve acceptable living standards for future occupiers and therefore the proposal conflicts with Policy L2.
25. Taking account of all of the above, I find that the benefits of the proposal would be substantially outweighed by its adverse effects when assessed against the national decision-making policies of the Framework. As such, Policy S4 of the Framework does not point to permission being granted in this instance.
26. In the final balance, the proposal does not accord with the development plan as a whole and there are no other considerations that indicate I should take a decision other than in accordance with it. Accordingly, the appeal should be dismissed.

Richard Snow

INSPECTOR